

TENANT ACKNOWLEDGEMENT AGREEMENT

THE SURETY PROGRAM DESCRIBED IN THIS AGREEMENT IS FOR THE BENEFIT OF YOUR LANDLORD ONLY. IT DOES NOT COVER YOU. THE PREMIUM, TAXES AND FEES YOU PAY ARE NOT A SECURITY DEPOSIT AND WILL NOT BE REFUNDED TO YOU. SUBJECT TO THE TERMS OF THE PROGRAM, IF THE INSURER PAYS A CLAIM TO THE LANDLORD, YOU MUST REIMBURSE THE INSURER FOR THE FULL AMOUNT OF THE CLAIM.

THIS PROGRAM IS OPTIONAL. YOU MAY MAKE A CASH SECURITY DEPOSIT INSTEAD.

Agreement Number	CD91-082190-00
Landlord Name	Specialized Property Management Inc. ("Landlord")
Address	1036 Mckavett Drive, Fort Worth, TX, 76140, United States
Insurer	Clear Blue Specialty Insurance Company ("Insurer")

LEASE

Rental Unit #	N/A
Effective Date	09/29/2022 ("Effective Date")
Lease Start Date	09/29/2022
Lease End Date	Per Lease Agreement
Monthly Rent	\$1,765.00
Coverage Start Date	09/30/2022
Coverage End Date	09/28/2023 (or move-out date, whichever is earlier)
Coverage Amount	\$2,997.50
Non-refundable Premium	\$943.56 ("Premium")
Surplus Lines Tax and Stamping Fees (if applicable)	\$44.29

TENANT(S)

Tenant	First Name	Last Name
1	Kirk	McGee

This Tenant Enrollment and Acknowledgment Agreement (the "**Tenant Acknowledgement Agreement**" or "**Agreement**") sets forth the terms and conditions upon which the Insurer, upon application by the **Tenant(s)** named above ("**Tenant**", "I," "me," "my," "you," or "your"), has agreed to enroll you for coverage under a master Landlord Rental Reimbursement Policy (the "**Policy**") issued to the **Landlord** named above in lieu of a cash **Security Deposit**. The **Policy** is placed through Rhino New York LLC (Rhino Insurance Agency in California) ("**Rhino**"), a surplus line broker granted limited binding authority by the **Insurer**. This **Agreement** sets forth certain obligations of **Tenant**, **Insurer**, and **Rhino**. This **Agreement** is deemed to be incorporated into the **Policy**, and the **Policy** sets forth further obligations of the **Landlord**, the **Tenant**, and the **Insurer**. You may review a copy of the **Policy** by contacting **Rhino** using the **Contact Information** contained in section **B.9.** of this **Agreement**. All terms not otherwise defined herein have the meaning given to them in the **Policy**. In the event of any inconsistency between the terms of this **Agreement** and the terms of the **Policy** (disregarding for this purpose the incorporation of this **Agreement** into the **Policy**), the terms of the **Policy** shall control.

This **Agreement** is made and entered into on the **Effective Date** stated above. This **Agreement** applies solely to the **Rental Property** identified above and corresponding **Lease Agreement** you entered into with the **Landlord**.

Section B.6. of this Agreement requires that certain Disputes are to be resolved individually in arbitration or small claims court. Disputes in arbitration and small claims court are resolved without a jury trial and with less discovery and less appellate review than in court.

On the basis of the acknowledgements and agreements contained herein, and your payment of **Premium**, the **Landlord** has been insured by the **Insurer** pursuant to the **Policy** and an endorsement for your **Rental Property** (each, an "**Endorsement**") has been issued to it. You also hereby agree to pay surplus lines premium tax and stamping fees, as applicable ("**Surplus Lines Tax and Stamping Fees**").

A. ENROLLMENT AND ACKNOWLEDGEMENTS

Rhino

By affixing my signature below, I intend to be legally bound and I understand and expressly and voluntarily acknowledge and agree to each of the following statements, terms and conditions:

1. The issuance of a **Policy** to the **Landlord** and my enrollment of the **Rental Property** under this **Agreement** is not insurance for my benefit nor is it renters insurance of any kind intended to cover losses to my personal property.
2. As between the **Landlord** and me, the **Insurer** and **Rhino** are neutral parties. Neither the **Insurer** nor **Rhino** has any right or duty to defend, or provide for or participate in the defense of, any dispute or controversy brought against me by the **Landlord** or by the **Landlord** against me.
3. I am enrolling the **Rental Property** under this **Agreement**, and committing to perform my obligations hereunder including the payment of **Premium** described below, so that the **Insurer** will issue an **Endorsement** in favor of the **Landlord** scheduling the **Rental Property** under the **Policy** for the benefit of the **Landlord**.
4. The opportunity to enroll the **Rental Property** was not mandatory, nor was it represented by anyone to me to be mandatory. It was offered in lieu of my posting a cash **Security Deposit** to the **Landlord**.
5. The payment of **Premium** under this **Agreement** is not a **Security Deposit**, and is not insurance for my benefit. I will not receive the **Premium** payment back at the end of the **Lease Agreement** term.
6. The issuance of a **Policy** to the **Landlord** and my enrollment of the **Rental Property** under this **Agreement**:
 - 6.1. will not under any circumstance relieve me of my obligation to pay rent for the **Rental Property** or of any other obligation under the **Lease Agreement**;
 - 6.2. will not add the **Insurer**, **Rhino**, or any person acting on either the **Insurer's** or **Rhino's** behalf, as a guarantor or co-signer for me on my **Lease Agreement** between me and my **Landlord**; and
 - 6.3. will not protect me from, or prevent, an eviction if I do not pay my rent or comply with any other obligations under the **Lease Agreement**;
 - 6.4. will not provide any coverage for my benefit nor for any loss to my personal property.
7. Except as expressly set forth in this **Agreement**, nothing contained herein is intended to confer upon me or any third persons (other than the **Landlord**) any rights, benefits, coverage, standing, capacity or remedies under, or in respect of, or pursuant to the **Policy**, and nothing in this **Agreement** is intended to relieve or discharge me or any third persons of obligations or liability due or owing to the **Landlord** or the **Insurer**, nor shall the enrollment of my **Rental Property** and my participation, agreement and acknowledgement under this **Agreement** confer any standing or capacity to me under or in respect of the **Policy**.
8. The failure on my part to pay money that I owe to the **Insurer** as a result of my obligations under this **Agreement** (including, specifically, pursuant to Section B.4.) may result in: (a) my credit being adversely impacted; (b) it being difficult for me to rent other property(ies); and (c) leading to higher insurance premiums generally when I look to secure other insurance of any kind.
9. In connection with the issuance of a **Policy** to the **Landlord**, the **Insurer** will review my credit report or obtain or use a credit-based insurance score based on information contained in that report. An insurance score uses information from a consumer's credit report to help predict how likely that person will cause claims and how expensive those claims will be. Typical items from a credit report that could affect a score include, but are not limited to, the following: payment history, number of revolving accounts, number of new accounts, the presence of collection accounts, bankruptcies and foreclosures. The information used to develop the insurance score comes from Equifax.
10. **Rhino** is not my agent nor my representative and it is not acting on my behalf. **Rhino** is a surplus line broker and for certain limited purposes acts under authority granted to it by the **Insurer**. Any assistance or guidance afforded to me by **Rhino** was done solely to facilitate the placement of the **Policy** with the **Insurer**, and to assist in the enrollment of the **Rental Property** under the **Policy**.

11. By signing this **Agreement**, I hereby: (a) authorize **Rhino** to charge me a one-time charge, or recurring automatic charges, in accordance with this **Agreement** from the credit card, debit card, checking account, or savings account that I have specified to **Rhino**; (b) acknowledge that this authorization will remain in effect until this **Agreement** is terminated or this authorization is revoked; (c) acknowledge that I can revoke this authorization by calling **Rhino** at (844) 844-3188 or mailing **Rhino** at 99 Wall St #1504, New York, NY 10005; (d) acknowledge that I can stop payment on a specific automatic withdrawal, without having to revoke this consent, by calling or mailing **Rhino** at the number or address noted above no less than three (3) business days before the automatic withdrawal date; and (e) acknowledge that if I fail to make payment after revoking this authorization or stopping payment, my monthly **Premium** payment or monthly **Surplus Lines Tax and Stamping Fees** payment, if applicable, may become past due.

B. TERMS OF THIS AGREEMENT

1. *Obligation to Pay Premium and Surplus Lines Tax and Stamping Fees, if applicable.*

- 1.1. By enrolling the **Rental Property** in this **Agreement** and making an initial payment, partial or otherwise, of the **Premium**, the **Insurer** will issue an Endorsement to the **Policy** for the benefit of the **Landlord** and the **Landlord** will be indemnifiable for **Damages, Loss of Rent Expenses, and Fees** up to the **Coverage Amount** set forth above through the end of my Lease.
- 1.2. I understand and expressly and voluntarily acknowledge and agree:
- 1.2.1. The payment of **Premium** and the payment of the **Surplus Lines Tax and Stamping Fees**, if any, may either be paid in equal monthly installments through the Lease End Date or paid in full up front.
- 1.2.2. If paid monthly, the obligation to pay the full amount of **Premium** through the Lease End Date will extend to such date, unless the **Lease Agreement** is terminated earlier by agreement with the **Landlord**. In such case, if terminated earlier, the **Premium** will be pro-rated.
- 1.2.3. The payment of **Premium** is a non-refundable payment and that I will not receive or be due any **Premium** or part thereof back at the end of my **Lease Agreement**, including if the **Lease Agreement** is terminated prior to the Lease End Date for any reason.
- 1.2.4. The payment of **Premium** is not under any circumstances a payment of any kind to the **Landlord**, nor shall it be considered a payment of rent or consideration of any kind to the **Landlord**. No compensation of any kind from the Insurer, its agent, representative or designee, or the **Tenant**, shall be due to the **Landlord** with respect to the payment of **Premium**.
- 1.2.5. I may cancel the enrollment of the **Rental Property** identified in this **Agreement** for a full refund by notice provided to the **Insurer** within fourteen (14) calendar days of the Effective Date, provided that such notice of cancellation is submitted in writing to the **Landlord**, and provided that my **Landlord** acknowledges the cancellation in writing.
- 1.2.6. I may view a copy of the **Policy** by contacting **Rhino** at (844) 844-3188 or mailing a written request to **Rhino** at 99 Wall St #1504, New York, NY 10005.
- 1.2.7. If I renew or extend my Lease with the **Landlord**, the Endorsement issued to the **Landlord** will automatically renew and the payment of **Premium**, as authorized in Section A.11., will continue. If I choose not to accept the Endorsement renewal offer, and I fail to provide alternative security acceptable to the **Landlord**, with the **Landlord's** acknowledgement of receipt, I understand the Insurer will be liable for providing a **Coverage Amount** not to exceed one (1) month's rent, or other applicable amount subject to the terms, conditions and limitations set forth in the **Policy**. I will be required to reimburse the **Insurer** for any claim the **Insurer** pays to the **Landlord**.

2. **Description of Policy coverage**. The **Policy** is issued to the **Landlord** solely for its benefit and provides reimbursement coverage exclusively to the **Landlord** pursuant to the terms, conditions and limitations set forth in the **Policy**, for certain physical damage, loss and costs incurred by the **Landlord** with respect to the **Rental Property** (beyond normal wear and tear) ("**Damages**"), and for lost and unrecovered economic value in respect of the **Rental Property** arising from, among other defaults, my failure to meet rental payment obligations under the **Lease Agreement**, including past due rent, unpaid rent, **Fees**, costs, expenses and cancellation and other penalties ("**Loss of Rent Expenses**") up to the **Coverage Amount** only. If I maintain a cash **Security Deposit** with the **Landlord**, it will be applied to any **Damages, Loss of Rent Expenses, and/or Fees** before the **Insurer** will pay on the remainder of the **Landlord's** claim.

3. Landlord claim for coverage . The **Policy** sets forth a process through which the **Landlord** may submit a claim for **Damages** or **Loss of Rent Expenses**. If the **Landlord** complies with those requirements, and no exclusion under the **Policy** applies, the **Insurer** will make prompt payment directly to the **Landlord** even if you dispute the **Landlord's** entitlement to payment. If you dispute the **Landlord's** right to all or any portion of the **Damages** or **Loss of Rent Expenses** claimed by the **Landlord** under the **Policy**, you may present evidence to the **Insurer**, through **Rhino**, for the **Insurer's** consideration or reconsideration as the case may be. If the **Insurer** accepts that you are not responsible under the **Lease Agreement** for all or part of the **Damages** or **Loss of Rent Expenses** claimed by or paid to the **Landlord**, the **Insurer** will either deny the **Landlord's** claim or, if payment has already been made, forego subrogation against you under the **Policy** as described in Section **B.4.** of this **Agreement** for all or such part of the **Damages** or **Loss of Rent Expenses** successfully disputed. Any dispute you may continue to have with the **Insurer's** determination shall be resolved pursuant to the Dispute Resolution provisions of the **Policy** as described in Section **B.6.** of this **Agreement**. You acknowledge and agree that you have an ongoing duty to cooperate with all reasonable requests by the **Insurer** as it evaluates coverage under the **Policy**.

4. Tenant Reimbursement Obligation .

4.1. For each valid claim asserted by the **Landlord** and for which a loss payment is made under the **Policy**,

4.1.1. I agree and commit that I will be obligated to pay the **Insurer** the amount of the claim up to the **Coverage Amount** (the "**Tenant Reimbursement Amount**") independent of any rights or obligations I may have under the **Lease Agreement**. Payment of such **Tenant Reimbursement Amount** will be due to the **Insurer** no later than sixty (60) days from the notification for reimbursement by or on behalf of the **Insurer**.

4.1.2. I acknowledge and understand payment of the **Tenant Reimbursement Amount** may be made through various methods including but not limited to credit card, debit card, checking account, or savings account transfers. Certain methods may incur additional fees. Installment plans may be available.

4.1.3. If I fail to make such payment to the **Insurer** within such time frame, the **Insurer** will have the right to commence a proceeding against me and may recover the amount due plus all attorneys' fees and costs of collection.

4.2. I agree and commit that I will be obligated to pay the **Insurer** the **Tenant Reimbursement Amount** if I renew or extend my **Lease Agreement** with the **Landlord**, and I do not execute a new **Agreement** with respect to such renewal or extension, as set forth in Section **B.1.2.7** above.

4.3. If the **Insurer** makes a demand from me for a **Tenant Reimbursement Amount**, **Tenant Reimbursement Amount** will be due to the **Insurer**

4.3.1. I hereby authorize anyone to furnish the **Insurer** or its agent (or its and their employees, agents and assigns) any information that will assist the **Insurer** in collecting the money I owe to the **Insurer**; and

4.3.2. I acknowledge and agree that the **Landlord** is not and shall not be a party to, and is not and shall not be responsible in any way for, the actions that the **Insurer** or its Agent takes during any collection efforts.

5. Multiple co-tenants . If I am sharing the **Rental Property** with one or more co-tenants, I understand and agree that the **Insurer** will be able to seek the full performance of all obligations under the **Lease Agreement**, the **Policy**, and this **Agreement** from me, even if a co-tenant may be responsible for any **Damages**, **Loss of Rent Expenses**, or any other failure to perform any obligation under the **Lease Agreement** or obligation under this **Agreement**.

6. Dispute Resolution .

- 6.1. Disputes or controversies between the **Landlord** and me that do not involve the **Insurer**, except insofar as I may dispute claims for **Damages, Loss of Rent Expenses, or Fees** directly with the **Insurer** as provided for in the **Policy** and described in Section **B.4.** of this **Agreement**, may be resolved in any manner and in any forum allowed by the **Lease Agreement** as governed by Applicable Law. For the avoidance of doubt, nothing herein shall restrict my right to seek relief against the **Landlord** in Small Claims Court, Housing Court or such other courts as may routinely hear disputes over rental properties or **Security Deposits**. However, any attempt by either the **Landlord** or me to bring the **Insurer** (which for all purposes of this Section **B.6** shall include **Rhino** and any person affiliated with the **Insurer** or **Rhino**) into such proceeding as a party shall be void. Any proceeding against the **Insurer** shall be resolved pursuant to the provisions of the **Policy** described in Sections **B.6.2.** through **B.6.5.** of this **Agreement**.
- 6.2. Any dispute or controversy, or portion of a dispute or controversy, arising out of or relating to (i) the legality of the **Policy** or this **Agreement**, (ii) an alleged breach of the **Policy** or this **Agreement**, (iii) the interpretation or construction of the **Policy**, this **Agreement**, the documents ancillary to the application for and formation of the **Policy**, including but not limited to this **Agreement**, advertising collateral, and the sayrhino.com website (including its terms of use), (iv) the acceptance by the **Landlord** of the **Policy** in lieu of a **Security Deposit** or other alternative, and (iv) the inducement and decision of the **Tenant** to enter into this **Agreement** will be resolved through individual arbitration. In arbitration, there is no judge or jury and there is less discovery and less appellate review than in court.
- 6.2.1. As used herein, "dispute" and "controversy" shall be interpreted broadly and shall include: (a) any claim for relief or theory of liability, whether based in contract, tort, statute or otherwise; (b) any disputes or controversies that arose before the **Policy Inception Date**; (c) any claims or controversies that arise after the expiration or termination of the **Policy**; and (d) any claims that are the subject of class action litigation. "Dispute" and "controversy" shall not, however, include claims that relate solely to the collection of any debts that the **Landlord** owes to the **Insurer** or that the **Tenant** owes to the **Insurer** under the **Policy**.
- 6.2.2. Notwithstanding anything in the dispute resolution provisions of the **Policy**, as described in Section **B.6.** of this **Agreement**, to the contrary, the **Landlord**, the **Tenant**, or the **Insurer** may bring an individual action in small claims court if the amount claimed is within the jurisdiction of that court.
- 6.2.3. This arbitration agreement is governed by the Federal Arbitration Act. Arbitrations shall be administered by the American Arbitration Association ("AAA") pursuant to its Consumer Arbitration Rules (the "AAA Rules") as modified by the version of this arbitration provision that is in effect when notice of a Dispute is given. The AAA Rules can be obtained from the AAA by visiting its website (www.adr.org) or calling its toll-free number (1-800-778-7879). Unless the **Insurer** and the **Landlord** agree otherwise, any arbitration hearing will take place in the county where the **Rental Property** is located. The arbitrator's award may be entered in any court with appropriate jurisdiction.
- 6.2.4. Parties to arbitration may be represented by counsel and shall be responsible for their own attorneys' fees and costs. The parties to arbitration shall share equally in the costs of the proceeding itself. Notwithstanding anything in this arbitration agreement to the contrary, the **Insurer** will pay any fees and costs that it is required by law to pay.
- 6.2.5. DISPUTES IN ARBITRATION ARE RESOLVED WITHOUT A JURY TRIAL. WHETHER IN ARBITRATION OR COURT, THE **LANDLORD**, THE **TENANT**, AND THE **INSURER** WAIVE THE RIGHT TO A JURY TRIAL.
- 6.3. WHETHER IN ARBITRATION OR COURT, THE **LANDLORD**, THE **TENANT**, AND THE **INSURER** WAIVE THE RIGHT TO PROSECUTE OR PARTICIPATE IN A CLASS ACTION, COLLECTIVE ACTION, OR OTHER REPRESENTATIVE ACTION. THE **LANDLORD**, THE **TENANT**, AND THE **INSURER** MAY SEEK RELIEF ONLY ON BEHALF OF ITSELF AND ONLY TO THE EXTENT NECESSARY TO REMEDY INDIVIDUAL CLAIMS. NOTWITHSTANDING ANYTHING IN THE **POLICY** OR THIS **AGREEMENT** TO THE CONTRARY, THIS CLASS ACTION WAIVER IS A MATERIAL AND ESSENTIAL PART OF AND CANNOT BE SEVERED FROM THIS ARBITRATION **AGREEMENT**.
- 6.4. The dispute resolutions provisions of the **Policy** and this **Agreement** shall survive the cancellation or expiration of the **Policy** and/or this **Agreement**, as applicable.

Rhino

- 6.5. The **Policy** and this **Agreement** will be governed by the laws of the state in which the **Rental Property** is located, without regard to principles of conflicts of laws. Further, pursuant to any statute of any state, territory or District of the United States which makes provision then, the **Insurer** designates the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the **Landlord** or any beneficiary hereunder, arising out of the **Policy** and/or this **Agreement**, as applicable.
7. **Integration** . This **Agreement**, as incorporated in the **Policy**, is the entire agreement between me and the **Insurer**. I expressly state and acknowledge that I am not relying on any other written or oral promises, statements or understandings not contained in this **Agreement** or the **Policy**, and no such other statements, promises or understandings shall be part of this **Agreement**, as incorporated in the **Policy**.
8. **Severability** . If any provision (or portion of a provision) of the **Policy** or this **Agreement** shall be held to be invalid, illegal or unenforceable according to the laws, regulations or public policy of any jurisdiction, the validity, legality and enforceability of the remaining provisions (and such portions of provisions) shall in no way be affected or impaired thereby, and such invalidity, illegality or unenforceability of such provision (or such portion of a provision) in such jurisdiction shall not affect the validity, legality or enforceability of such provision (or such portion of a provision) in any other jurisdiction, in each case, unless the unenforceability thereof would reasonably be expected to have a material adverse impact on a party hereto, in which case such party's consent thereto shall be required in order for this **Agreement** to continue in effect.
9. **Contact Information** . For all other notices to **Rhino**, please visit the website <https://support.sayrhino.com/hc/en-us/categories/360003291332-Contact-us> for more information on how to e-mail or live chat, contact **Rhino** at (844) 844-3188, or by mailing a written request to **Rhino** at 99 Wall St #1504, New York, NY 10005.

RHINO NEW YORK LLC (RHINO INSURANCE AGENCY in California) as Coverholder for CLEAR BLUE SPECIALTY INSURANCE COMPANY

Signed By:



Print Name:

Benjamin Lantos

Title:

Authorized Signatory

Acknowledged and agreed, on this 29 day of September, 2022 by

Tenant

Signed By:

Digitally Signed By Kirk McGee

Print Name:

Kirk McGee